

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN SWEDEN

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Sweden, grounded in the Environmental Code, the environmental courts, and documented campaigns

This guide uses the Swedish legal terms you will actually encounter (miljöbalken, the Land and Environment Court, samråd, the offentlighetsprincipen, and so on), each explained in plain language where it first comes up. It describes the national framework; the county administrative boards (länsstyrelser) and municipalities (kommuner) have their own roles — check locally.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up.

A note on money. Budgets in this guide are in Swedish kronor (SEK).

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action directly determines project outcomes in Sweden. Projects that clear every political and commercial hurdle still fall when opposition is organised, documented, and legally sharp. When a limestone company sought to open a quarry in the **Ojnare** forest on Gotland — next to the lake that supplies the island's water and amid rare, EU-protected habitats — residents, nationwide campaigners, and environmental organisations fought it through the **Land and Environment Court** and its Court of Appeal for the better part of a decade; the area was designated a **Natura 2000** site, and in 2019 the Supreme Court's final refusal ended the quarry for good. Across the country, communities and environmental organisations using the **Environmental Code**, the **environmental courts**, **EU nature law**, and the **right to appeal** have forced projects to be refused, revoked, redesigned, or abandoned. These outcomes were not inevitable; communities made them happen.

But most communities don't know **HOW** to make opposition effective. They send one comment during the consultation, then give up. They assume "the court will refuse it" without building public pressure, documenting the harm, or appealing. They generate coverage without a strategy. They organise people and then lose them to burnout after a few months.

This guide shows what actually works — in the Swedish system.

The Strategic Framework

Successful opposition campaigns follow the same basic pattern:

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STEP 1: TARGET IDENTIFICATION
↓
STEP 2: DOCUMENTATION (proof of harm)
↓
STEP 3: LOCAL OPPOSITION BUILD (organised community)
↓
STEP 4: LEGAL CHALLENGES (environmental court / appeal)
↓
STEP 5: MEDIA STRATEGY (public visibility)

These operate SIMULTANEOUSLY (not sequentially)
Each step amplifies the others
Multi-tactic pressure compounds toward victory
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Why the legal step matters so much here: Sweden gives communities a distinctive set of levers. Big projects need a **permit (tillstånd)** under the **Environmental Code (miljöbalken)** — and, unusually, for major **environmentally hazardous activities** and **water operations** that permit is decided by a specialised **Land and Environment Court** in a trial-like process, where the **burden is on the operator** to show the project meets the Code's general rules (the **precautionary principle** among them). **Anyone genuinely affected — and qualifying environmental organisations — can appeal**, and **EU nature law (Natura 2000)** is often the sharpest ground, as at Ojnare. Add Sweden's **offentlighetsprincipen** — the world's oldest right of public access to official documents (since 1766) — and the toolkit is powerful. No Swedish campaign should be planned without understanding these.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Before you invest time, money, and emotional energy, understand this:

First, a definition. This guide calls it a **system tilted toward approval** (sometimes called *institutional bias*). It does not mean anything illegal. It means the bodies that decide on a project lean toward approving it — because the state and municipalities want investment and jobs (and, increasingly, the "green transition" — mines, wind, and industry), or because the applicant's own consultants prepare the environmental study.

When these factors are present, opposition becomes harder. It does not become impossible. It becomes slower and more expensive and has a lower chance of stopping a project outright — but it still routinely wins refusals, conditions, redesigns, and delay. Where there is genuine misconduct — bribery, an undisclosed conflict of interest, the offences the oversight bodies handle — that is a different and (in Sweden) rarer problem, covered in Section 11.

This is covered in Sections 10 and 11. Read them before committing resources.

HOW THE SYSTEM WORKS: WHO DECIDES, AND HOW

If you've never dealt with how projects get approved, read this section first. It explains, in plain terms, who holds power over a development in Sweden, how a decision gets made, why the money so often points toward "yes," and the handful of words you'll need. Every term is defined here on first use. The rest of the guide assumes you know this map.

The levels of government — and what each one controls

Sweden has a national government, 21 **county administrative boards (länsstyrelser)**, and 290 **municipalities (kommuner)**.

- **National government and agencies** — the **Swedish Environmental Protection Agency (Naturvårdsverket)** and sector agencies set policy; the **Land and Environment Courts** decide major permits.
- **County administrative boards (länsstyrelser)** — handle **nature protection**, supervision, and — through their **environmental permit delegation (miljöprövningsdelegation)** — permits for many activities.
- **Municipalities (kommuner)** — control **land-use planning** (the detailed development plan, detaljplan) and building permits, and hold a **veto over some projects** (notably wind power).

So which body decides *your* project? - A big **environmentally hazardous activity** (a mine, factory, large facility) or a **water operation** (affecting lakes, rivers, groundwater) → a **permit** under the **Environmental Code**, decided by the

Land and Environment Court (or, for some activities, the county board's permit delegation, appealable to the court). - The land use → the municipality's **detaljplan** and building permit. - Anything that may significantly affect a **Natura 2000** site → a **Natura 2000 permit** — often the decisive question (as at Ojnare). - Anything affecting **Sámi reindeer herding** → the Sámi's rights and the **consultation** duty.

The expert and decision bodies

- **The Land and Environment Court** and the county board's permit delegation — decide the permit.
- **Naturvårdsverket, the county boards, and independent experts** — set policy and assess effects.
- **The environmental courts, the audit and ombudsman bodies** — the accountability bodies (see the overseers, below, and Section 11).

How a decision is actually made — the permit journey

For a major project, the permit process under the **Environmental Code** runs roughly:

1. **Consultation (samråd)** — before applying, the developer must **consult** the county board, the municipality, and **those affected and the public. This is your first, and often most valuable, chance to put concerns on the record** — attend and submit written views.
2. **Application and EIA** — the developer files the application with an **environmental impact assessment (miljökonsekvensbeskrivning, MKB)**.
3. **The permit examination** — for major activities and water operations, the **Land and Environment Court** holds a trial-like examination; **the operator bears the burden** of showing the project meets the Code's general rules of consideration (Chapter 2 — the precautionary principle, best available technology, the location principle, and more).
4. **Decision and appeal** — the court (or the delegation) **grants, conditions, or refuses** the permit. **Affected parties and qualifying environmental organisations can appeal** to the **Land and Environment Court of Appeal** (leave to appeal is usually needed) and, ultimately, the Supreme Court.

A **defective EIA, a significant effect on a Natura 2000 site, a breach of the Code's general rules, or harm to protected species or water** are among the strongest grounds to refuse or overturn a permit.

The rulebook — the laws that decide the outcome

- **The Environmental Code (miljöbalken)** — the integrated environmental statute: the **general rules of consideration** (Chapter 2 — precautionary principle, polluter-pays, best available technology, and the **reversed burden of proof** that puts the onus on the operator); the **EIA** (Chapter 6); **nature and species protection** including **Natura 2000** (Chapters 7-8); **environmentally hazardous activities** (Chapter 9) and **water operations** (Chapter 11); and the **environmental organisations' right to appeal** (Chapter 16).
- **EU environmental law** — the **Habitats Directive** (Natura 2000), the **Water Framework Directive**, the **EIA Directive**, and the **Aarhus Convention**.
- **The Freedom of the Press Act (tryckfrihetsförordningen)** — the **offentlighetsprincipen**, the public's right of access to official documents (since 1766).
- **The right of public access (allmansrätten)**, the **Reindeer Herding Act**, and the **Sámi consultation** duty.

Follow the money — why the system often leans toward "yes"

- **The state and municipalities** want investment and jobs, and there is a strong national push for the **"green transition"** — mines for critical minerals, wind power, and heavy industry, especially in the north — so there is real pressure to approve.
- **The environmental study (MKB) is prepared by the applicant's own consultants**, so it tends to read in the project's favour.
- **Developers** are often large companies with deep resources.
- Many projects that reach a decision are permitted, with conditions.

None of this makes a decision inevitable. It explains why a decision rarely tips your way on its own — it takes organised, evidenced pressure.

The overseers — who watches the decision-makers

- **The Land and Environment Court**, the **Land and Environment Court of Appeal (Mark- och miljööverdomstolen)**, and the **Supreme Court** — decide and review permits and can refuse or overturn them; the

- Court of Justice of the EU (CJEU)** rules on EU-law questions.
- **The oversight bodies** — the **National Audit Office (Riksrevisionen)**, the **Parliamentary Ombudsmen (JO)**, the **Chancellor of Justice (JK)**, and the prosecutors' **National Anti-Corruption Unit** (see Section 11).
 - **The Sámi Parliament (Sametinget)** — for matters affecting the Sámi.

QUICK REFERENCE: SUCCESS RATES BY STEP & COMBINATION

These ranges describe the general effectiveness of each tactic drawn from documented opposition campaigns. They are patterns, not guarantees. In Sweden, the variable most likely to push a campaign above these ranges is a well-founded challenge on a real defect — a significant effect on a **Natura 2000** site, a defective **EIA**, a breach of the **Code's general rules**, or harm to **water or protected species** — carried through the **environmental courts** (Step 4).

Individual Step Success Rates

Step	Success Rate	Timeline	Cost (SEK)	What "Success" Means
Documentation Only	5-10%	3-4 months	SEK 400,000	Project slowed, public awareness only
Opposition Only	15-20%	6-12 months	SEK 1,000,000	Public pressure, minor modifications
Legal Only	20-30%	12-24 months	SEK 0-300,000	Slow; strong if the defect is real
Media Only	10-15%	3-6 months	SEK 400,000	Public knows, but no action
Docs + Opposition	25-35%	12 months	SEK 1,300,000	Slowed, some modifications
Docs + Legal	30-40%	12-18 months	SEK 1,600,000	Stronger legal arguments
Opposition + Legal	35-45%	12-18 months	SEK 1,900,000	Political pressure strengthens the case
Opposition + Media	30-40%	9-12 months	SEK 1,300,000	Visibility creates political pressure
All 5 Steps Combined	60-75%	12-24 months	SEK 2,300,000	Permit refused/revoked/modified or project halted

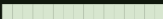
Key insight: All five steps together = 3-4x more effective than any single step.

A note on legal cost: Swedish environmental permit proceedings are relatively open and low-cost for opponents — affected parties and qualifying environmental organisations can appeal, each side generally bears its own costs (rather than a full "loser pays" rule), and the world-leading offentlighetsprincipen gets you the documents for free. Environmental organisations (such as the Swedish Society for Nature Conservation) often carry the litigation. So the "Legal" figures are not a hard floor. The main cost is expert evidence.

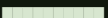
Effectiveness Visualization

SUCCESS PROBABILITY (Permit Refused/Revoked/Modified/Project Halted)

CLEAN DECISION SCENARIO:

All 5 Steps Combined:  65-75%
Same chance as: a coin coming up heads twice (75%)

4 Steps Combined:  55-65%
Same chance as: a forecast of 60% rain being correct

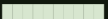
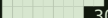
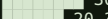
3 Steps Combined:  45-55%
Same chance as: a single coin flip (50%)

2 Steps Combined:  30-40%
Same chance as: drawing a face card from a deck

Single Step:  5-20%
Same chance as: rolling a specific number on one die

WITH MODERATE TILT FACTORS:

(A strong green-transition push, or an applicant-funded EIA)

All 5 Steps Combined:  40-45%
4 Steps Combined:  30-40%
3 Steps Combined:  20-30%
2 Steps Combined:  15-25%
Single Step:  3-12%

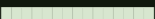
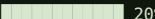
WITH SEVERE TILT FACTORS:

(A national-priority project, applicant-only studies, heavy political backing)

All 5 Steps Combined:  25-30%
4 Steps Combined:  18-24%
3 Steps Combined:  12-18%
2 Steps Combined:  8-15%
Single Step:  2-8%

One important point: a single clear legal defect — most powerfully a significant effect on a **Natura 2000** site, or a defective **EIA** — can lead the **environmental courts** to refuse or overturn a permit even where the politics favour the project, because it is applying a binding legal standard (often EU law) the authorities cannot ignore. That is what happened at **Ojnare**. (A refused permit can be re-applied for with a better study — so an early win may need defending, though at Ojnare the protection ultimately held.)

Step Importance Ranking (When All Combined)

1. **OPPOSITION BUILDING** (Step 3)  25%
Why: creates political pressure, visible to decision-makers, enables other steps
2. **DOCUMENTATION** (Step 2)  22%
Why: provides ammunition for the courts and media; grounds opposition in facts
3. **MEDIA STRATEGY** (Step 5)  20%
Why: makes opposition/legal/documentation visible, creates political cost
4. **LEGAL CHALLENGES** (Step 4)  18%
Why: the environmental courts can refuse or overturn a permit — and hold the Natura 2000 and appeal levers
5. **TARGET ID** (Step 1)  15%
Why: foundation — if wrong, everything fails

Real insight: a large, organised, visible community that has also engaged in the **consultation** and lined up a qualifying **environmental organisation** to appeal is far more powerful than perfect documentation or a brilliant legal argument standing alone.

STEP 1: TARGET IDENTIFICATION

Time to complete: Weeks 1-4 **Cost:** SEK 0 **Outcome:** A clear picture of what you're fighting, who decides, and when the decision is final

Core Questions You Must Answer

Before you organise a single person, answer these precisely.

Question 1: What Exactly Will Be Destroyed?

Not: "Environmental damage" But: "The quarry threatens the groundwater that supplies [number] people and rare habitats in (or next to) a Natura 2000 area."

Not: "Pollution" But: "The facility will emit an estimated [X] over the nearest homes, and discharge into the [named] water body, which the Water Framework Directive requires to stay in good status."

Not: "Harm to the Sámi" But: "The mine cuts across the winter grazing land the [named] reindeer-herding community (sameby) depends on, without proper consultation."

Why this matters: specific harms are easier to document, litigate, and organise around. Vague opposition dies; specific opposition survives. Harm to a **Natura 2000** site, a **water body**, a **protected species**, or **Sámi reindeer-herding land** also opens a **specific legal front** — and the Natura 2000 and EU-law grounds are the sharpest in the Swedish system.

Question 2: Who Decides?

You cannot pressure an abstraction. Identify the decision-maker precisely — it is usually one of these:

- **The Land and Environment Court** — for major **environmentally hazardous activities** and **water operations**.
- **The county board's environmental permit delegation** — for many other activities (appealable to the court).
- **The municipality** — for the **detaljplan** and building permit (and the veto over some projects).
- **A qualifying environmental organisation** — which can carry the appeal for the whole community.

Write it down concretely: "The Land and Environment Court will decide the permit after the samråd and the EIA. The project may significantly affect a Natura 2000 site, so a Natura 2000 permit is needed — and any permit can be appealed by affected parties and by a qualifying environmental organisation."

Question 3: What Specific Action Stops It?

Not: "Stop the project" But: "Persuade the court to refuse the permit, or win a refusal on appeal" — or, if refusal is unrealistic, "obtain strict conditions, real compensation measures, and a redesign."

Not: "Protect the environment" But: "Show the project significantly affects a **Natura 2000** site, the **EIA** is defective, or the Code's **general rules** aren't met, and appeal."

Why this matters: you can demand something achievable. Vague demands are easy to ignore; specific ones create measurable pressure and, if the project is unlawful, become the ground for a court to act.

Question 4: When Is the Decision Final?

Timeline tells you how much time you have. Map every date: the **samråd (consultation)**, when the application and **EIA** are filed, the court examination, and the **appeal deadline** (usually about three weeks from the decision). Don't wait: take part in the samråd (and record its gaps), request the documents early (the **offentlighetsprincipen** makes this fast and free), and line up a qualifying environmental organisation to appeal.

Question 5: Are There Documented Financial or Policy Pressures?

This is the tilted-system assessment question. Know it BEFORE you organise: - Is the project a **national-priority** or "green-transition" project (a critical-minerals mine, a big wind farm, a major industry), hardening its backing? - Is the **EIA** prepared and paid for by the applicant's own consultants only? - Does the municipality depend on the project for jobs and tax revenue? - Is the developer a large company with deep resources for studies, lawyers, and appeals? - Does the project affect **Sámi** lands, raising distinct rights and consultation questions?

Why this matters: if strong national-priority backing or applicant-controlled studies are present, opposition must overcome different barriers (Section 10). It doesn't mean opposition can't work — Ojnare was fought against a determined company and it fell — it means realistic expectations and a focus on the **Natura 2000**, **EIA**, and **general-rules** defects, on conditions, and on the **courts**, rather than a straight political refusal.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

Time to complete: Months 1-4 **Cost:** SEK 400,000-600,000 (SEK) **Outcome:** Three polished reports (30+ pages total) showing specific, quantified harms

Success Rate (Documentation Alone): 5-10% Success Rate (Documentation + Opposition): 25-35% Success Rate (Documentation + Opposition + Legal + Media): 60-75%

The Three Documentation Layers

Documentation turns vague opposition ("This is bad") into undeniable evidence ("This specific harm will occur to these specific people/places at these specific costs"). Success comes from three layers working together — and, in Sweden, documenting a threat to a **Natura 2000** site, a **water supply**, or a **protected species** is doubly powerful, because it engages binding EU-law protection.

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

What it is: documentation of existing conditions BEFORE the project begins — including the habitats, species, and water systems present.

Why it matters: developers claim "the site is low-value" or "the impact is minor." Baseline documentation proves what was there — and in Sweden, proving a threat to a **Natura 2000 habitat, a protected species, or a water supply** engages the strongest protection there is.

Documented case — Ojnare, the water, and the limestone quarry

A limestone company applied to open a quarry in the **Ojnare** forest on northern **Gotland**, in an area of rare habitats between two existing **Natura 2000** sites and above **Lake Bästeträsk**, which supplies the island's water. Its backers treated it as an important limestone deposit with local jobs and tax revenue. The opposition made that impossible. Residents, nationwide campaigners, and environmental organisations documented what was at stake — the threat to the groundwater and water supply, and the rare, EU-protected habitats and species — and pressed the case through the **Land and Environment Court** and its Court of Appeal, alongside mass protests and a forest occupation.

It changed the outcome. Over years of litigation, and with the area designated an extended **Natura 2000** site, the quarry was blocked; in 2019 the **Supreme Court's final refusal** ended the struggle with a win for the environmental movement, and the area is being protected. The documented threat to the water supply and to EU-protected nature was the hinge. (Honesty matters here: this took the better part of a decade, went back and forth through several courts and the government, and the win had to be defended at every turn.)

Why it matters for you: the Ojnare campaigners' documentation — of the water threat and the protected habitats — was decisive. Documenting existing conditions, especially Natura 2000 habitats, protected species, and water systems, is the foundation of everything that follows.

Building your own baseline (typical process). Document existing conditions before the project starts, because a developer will claim the site is low-value and baseline cannot be reconstructed later. A workable approach: surveys across a season cycle of the project area plus reference sites; a **species and habitat inventory** with GPS locations, flagging anything protected under the **Habitats or Birds Directive** or in (or next to) a **Natura 2000** site that the developer's **EIA** omitted — this is the sharpest lever; a record of who uses the land, and whether it is **Sámi reindeer-herding** land; the **water systems** the community depends on (groundwater, lakes, rivers — as at Ojnare) and their status under the Water Framework Directive; and water and air baselines. Typical cost is around SEK 350,000-500,000 for a qualified ecologist and hydrologist, GPS, and testing — reducible with knowledgeable community members, university researchers, and naturalists. Dated, same-spot photographs and geo-referenced maps make it credible.

LAYER 2: IMPACT ANALYSIS

What it is: detailed analysis of what specific harms will occur, based on the project description plus your baseline.

Why it matters: it shows not just "something bad" but "specifically THIS BAD in THIS WAY" — and it maps directly onto what the **EIA**, the Code's **general rules**, and EU law require.

Use the developer's own words and the legal tests. Powerful, documentable weak points in Swedish assessments include: - **A significant effect on a Natura 2000 site.** A project that may significantly affect a **Natura 2000** site needs a permit and faces high, binding EU-law hurdles — the sharpest ground, as at **Ojnare**. - **A defective EIA.** The **environmental impact assessment** must genuinely assess effects, alternatives, and mitigation; omissions or understatements are strong grounds. - **A breach of the Code's general rules (Chapter 2).** Because the **burden is on the operator**, gaps in showing the precautionary principle, best available technology, or a suitable location are powerful.

- **Harm to a water body or protected species.** A worsening of a water body's status (Water Framework Directive) or harm to protected species adds further grounds.

Convert each of the developer's admissions ("temporary disturbance," "limited effect") into a quantified prediction against your baseline.

Outcome (illustrative): a significant **Natura 2000** effect, a defective **EIA**, or a failure to meet the Code's rules can lead the courts to refuse or overturn the permit — adding years, or stopping the project.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

What it is: quantification of the human-health and economic costs to the community.

Why it matters: decision-makers and the public respond to human cost. "X hectares affected" matters less than "the water supply for [number] people put at risk, at SEK X of cost" — or "an estimated 45 additional respiratory cases a year."

Method: use recognised hydrological, air-quality, or noise modelling and the public-health literature to translate the project into health, water-security, and economic outcomes, then attach costs — risks to the water supply, additional respiratory and cardiovascular cases, lost land and livelihoods, and total annual and lifetime cost for the affected population.

Outcome (illustrative): an independent health-and-economic analysis can move a municipality or the county board, feed the court case, and force conditions the original design lacked.

How to Structure Your Documentation

Phase 1: Baseline Conditions (Months 1-2)

Engage a qualified ecologist and hydrologist (or use knowledgeable community members, university researchers, and naturalists); document conditions AND Natura 2000 habitats, protected species, water systems, and any Sámi-land use.

Deliverable: a 20-30 page baseline report with species/habitat inventory, water data, dated photographs, and geo-referenced maps.

Phase 2: Impact Analysis (Months 2-3)

Obtain the application, the **EIA**, and the file (the **offentlighetsprincipen** makes this fast and free); identify specific effects; test the study against the EIA rules, the Code's general rules, and Natura 2000. **Deliverable:** a 20-30 page impact analysis with quantified predicted effects, comparison to baseline, and the developer's own admissions quoted back.

Phase 3: Health/Economic Analysis (Months 3-4)

Identify affected populations; estimate health, water-security, and economic impacts and costs. **Deliverable:** a 15-20 page report written for the public and press.

Common Documentation Pitfalls (What Fails)

- **Waiting for perfect data.** Documented data beats perfect data that arrives after the permit.
- **Only environmental data.** Add health, water-security, and economic impacts — the arguments that move decision-makers, the courts, and the public.
- **No independent check.** A report the authority can dismiss as "activist material" is far stronger after an independent expert or a university reviews it.
- **Missing the Natura 2000 angle.** The Natura 2000 and EU-law grounds are the sharpest in Sweden — look hard for them.
- **Ignoring the developer's own admissions.** Their **EIA** is your best source; quote it against itself. Use the **offentlighetsprincipen** to get it and the file.

Documentation Budget Breakdown (SEK)

Item	Cost	Notes
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Ecologist + hydrologist (baseline + species/water)	SEK 320,000	Natura 2000, protected species, and groundwater — the key levers
GPS / survey equipment	SEK 25,000	Mapping/documentation
Water/air testing	SEK 55,000	Sampling across seasons
Independent / university expert review	SEK 45,000	Credibility
Printing / document requests	SEK 15,000	Copies for decision-makers
TOTAL	SEK 460,000	Reducible with university partners and community members

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what wins a case already exists in public records. The job is knowing which record holds which fact, and pulling it before you need it. This section is the shopping list; it also points you to the sources this map links.

Start at the deciding body's register and the kommun (municipality)'s own website. In Sweden the official documents for a project — the permit application, the miljökonsekvensbeskrivning (MKB — environmental impact statement), the consultation (samråd) notices, the decision — are posted by the body running the review: the kommun for local building and detailed plans (detaljplan), the county administrative board (länsstyrelsen) for many permits, and the Land and Environment Court for environmentally hazardous activities. The official documents for most local projects live on the kommun (municipality)'s own website (planning applications, notices, agendas), so check those pages weekly. The legal clock often runs from what is posted there.

The project file and the miljökonsekvensbeskrivning (MKB). Get the developer's miljökonsekvensbeskrivning (MKB) as soon as it is posted — it is public, and it is where the developer admits harm in its own words.

Baseline environmental data. Environmental data from the länsstyrelsen and national agencies; protected-species and Natura 2000 records; and the developer's own MKB baseline studies.

Ownership and money. Company ownership from Bolagsverket; land from the land register (Lantmäteriet); and officials' interest and party-funding records — Sweden's strong transparency (offentlighetsprincipen) makes most records open.

Case law and precedent. Court decisions, including the Land and Environment Courts, are broadly accessible under Sweden's openness principle.

How to force a document open. Sweden's **principle of public access (offentlighetsprincipen)** gives an unusually strong right to public documents; request them directly from the authority, which must respond promptly. Use the request wording in Section 8E.

Free and low-cost help. Environmental organisations with standing (e.g. Naturskyddsföreningen) can appeal and litigate; for Sámi land interests, the **Sámi Parliament (Sametinget)** and affected sameby are key.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to the deciding authority, and the local-ally entries point you to the organisations and legal help already working nearby. Pull that thread first, then follow it into the registers above.

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE COMMUNITIES THAT HOLD

Time to complete: Months 2-6 (foundation), 6-12 (sustained) **Cost:** ~SEK 1,000,000 (SEK) for a full year **Outcome:** 50-100 core people, 5-10 organisations, sustained organisation

Success Rate (Opposition Alone): 15-20% **Success Rate (Opposition + Documentation + Legal + Media):** 60-75%

Critical Insight About Organising

Most opposition campaigns fail not because they can't build opposition, but because opposition burns out after 4-8 months. You need structures that prevent it. (The Ojnare campaign held together for years — that endurance is what won.)

PHASE 1: FOUNDATION (Months 1-2)

Goal: a core group of 15-20 motivated people and a clear picture of their concerns.

Step 1a: One-to-One Conversations

People don't join movements from pamphlets; they join from relationships. Identify the 15-20 people most affected or interested. **Talk to** each in person for an hour. Ask: "What's your biggest concern about this project?" Listen — don't pitch. Ask what they'd be willing to do. Each person has a different concern (land, water, health, nature, a way of life). Opposition organised around each shared concern is stronger than one generic message.

Step 1b: Affinity Groups by Concern

Organise small groups (3-8 people) around a shared concern, not around "opposition": - **Land/livelihood group** — property, farming, forestry, and (where relevant) **Sámi reindeer herding** - **Water group** — the groundwater, lakes, and rivers, and Water Framework Directive status - **Health group** — air quality, dust, noise - **Nature group** — protected species, habitats, and the **Natura 2000** case Each group meets regularly and works out how opposition serves *their* interest, coordinating while keeping its own framing.

Step 1c: Form an Association — and Connect to a Qualifying Environmental Organisation

Two things matter. First, the classic Swedish vehicle is a **non-profit association (ideell förening)**, easy to form, which can organise the community, receive donations, and speak publicly. Second — and this is decisive — connect early to a **qualifying environmental organisation (miljöorganisation)** such as the **Swedish Society for Nature Conservation (Naturskyddsföreningen)**, because *they* hold the special **right to appeal** permits in the environmental interest. Your local energy plus their standing and expertise is the winning combination. Where the project affects **Sámi** land, work with the affected **reindeer-herding community (sameby)** and Sámi organisations, whose rights carry weight.

PHASE 2: PUBLIC LAUNCH (Months 2-3)

Goal: announce opposition to the public, the media, and decision-makers.

Step 2a: Public Meeting (public forum / möte)

Hold a public meeting where people set out their concerns to themselves, to local councillors, and to press. A serious, informational meeting carries weight. Typical shape: welcome → project explanation → community concerns (each person a few minutes) → expert Q&A (an ecologist, a hydrologist, a lawyer) → next steps.

Step 2b: Opposition Materials (Factsheets)

One page. Decision-makers and neighbours won't read 30 pages; one page gets read. Structure: a headline stating the problem → quick quantified facts → the specific effect → **what you're asking for** → the evidence base → contact/resources. Print widely; distribute at shops, the library, community boards; post a digital version. Cost: ~SEK 30,000.

Step 2c: The Consultation (Samråd) — Turn People Out and Put Concerns on the Record (the decisive early step)

This is the pivotal Swedish moment. When the developer runs the **samråd (consultation)** before applying, **turn people out to attend and submit written views**, each raising real grounds — a significant Natura 2000 effect, a threat to the water supply, a defective assessment, harm to protected species or Sámi land. Concerns raised now shape the application and the EIA, and build the record you'll rely on later. Where the county board or the court invites views on the application, respond there too. Cost: ~SEK 20,000.

Step 2d: Media Coverage at Launch

Release data + concerns + the Natura 2000 finding = a story. (Full press-release example is in Section 9, 9G.) Contact reporters, then send the study. Expect 1-3 local stories.

PHASE 3: COALITION EXPANSION (Months 3-6)

Goal: grow from 20 core people to 50+ core plus 5-10 organisations.

Step 3a: Organisation Outreach

Approach environmental and community organisations — the **Swedish Society for Nature Conservation (Naturskyddsföreningen)** and its local branches, **Nature and Youth (Fältbiologerna)**, **WWF Sweden**, **Greenpeace Sverige**, local nature and heritage groups, hunting and fishing associations, the affected **sameby** and Sámi organisations where relevant, universities, and businesses that lose from the project. Research each; contact the right person; explain how opposition serves *their* aims; make a specific, tailored ask.

Tailored asks: - **Naturskyddsföreningen (national or local):** "Would you appeal the permit, or support an appeal — and help on the Natura 2000/EIA grounds?" - **A university group:** "Would your researchers assess the habitats, species, or groundwater independently?" - **A sameby / Sámi organisation:** "Help us document and assert the reindeer-herding impacts and the consultation right." - **Local associations / businesses:** "This threatens the water and land we depend on — will you object and speak?"

Step 3b: Coalition Agreements (Written)

A written agreement — who's in, how decisions are made, meeting frequency, the public message, who may speak for the coalition, conflict resolution, money, and an exit clause — prevents later conflict. Consensus is stronger but slower; voting is faster but can fracture.

Step 3c: Coordinated Public Work

Assign leadership by strength: the nature and Natura 2000 analysis to the environmental organisation/university; the water case to the hydrology group; the Sámi impacts to the sameby; media to whoever has the contacts; the legal track to the qualifying environmental organisation (which holds the appeal right). Sequence activities so each builds momentum (coalition launch → data release → samråd turnout → appeal).

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Goal: maintain organised opposition across a 12+ month timeline.

Step 4a: Public Demonstrations (demonstrations / manifestationer)

Regular, same time and place, growing attendance — outside the county board, the municipal offices, or at the site. Handle logistics: notify the police of a public gathering as required, provide marshals, ensure accessibility, and a sound system for large gatherings. Momentum matters: "50 gather" becomes "gathering grows to 500."

Step 4b: Media Campaign (Ongoing)

Monthly rhythm: week 1 a release tied to an event/data; weeks 2-3 social media 3x/week; week 4 a reporter check-in. Rotate themes (samråd turnout → the Natura 2000 finding → coalition growth → demonstration → appeal filed).

Step 4c: Common Opposition Failure Points (How to Prevent)

Failure Point 1: Burnout (Months 4-8). Prevent it: regular (not constant) meetings; celebrate milestones; fund one part-time coordinator; schedule breaks; keep a public progress tracker. The campaigns that endure — like Ojnare, which held for years — are the ones that win.

Failure Point 2: Coalition Conflict. Prevent it with a written agreement and decision process, a clear escalation path (discuss → mediator), an explicit exit clause, and rotating leadership. Be alert to developers trying to split a community with jobs or "compensation" offers; keep decisions transparent and collective.

Failure Point 3: Competing Funding. Grants with conflicting conditions can pull groups off shared work. Coordinate grants up front and agree no group commits coalition resources without a coalition decision.

Failure Point 4: No Clear Wins. Name milestones as victories (an association formed, strong samråd turnout, a large demonstration, a qualifying organisation joining, the appeal filed) and publicise cumulative progress.

Opposition Building Budget: Year-Long Campaign (SEK)

Item	Cost
Factsheet printing	SEK 45,000
Website/phone/data (annual)	SEK 30,000
Meeting / venue costs	SEK 55,000
Outreach travel (often remote areas)	SEK 85,000
Consultation / documentation materials	SEK 20,000
Demonstration supplies (banners, sound)	SEK 75,000
Coalition meeting costs	SEK 55,000
Part-time coordinator (12 months)	SEK 500,000
Social-media / content (part-time, 3 months)	SEK 105,000
Fundraiser/event costs	SEK 55,000
TOTAL	SEK 1,025,000

Funding the campaign. Money typically comes from four places: individual donations (local collections and online fundraisers); grants from environmental and community foundations (long lead times — apply early); benefit events; and in-kind support from coalition organisations (expertise, meeting space, volunteer time). A non-profit association can receive donations and, where eligible, grants. Aim to raise half the budget by month 6 and the rest by month 12.

Reductions: use a volunteer coordinator, or run a shorter 6-month campaign, to cut ~SEK 500,000; and the qualifying environmental organisations often carry the litigation, and the *offentlighetsprincipen* makes documents free.

STEP 4: LEGAL CHALLENGES — THE ENVIRONMENTAL COURTS, THE CODE, AND THE APPEAL RIGHT

Time to complete: permit cases run 6-24 months; appeals add months **Cost:** SEK 0-300,000 (SEK; access is relatively open and each side generally bears its own costs) **Outcome:** a permit refused or overturned, a project halted, conditions, or a project shelved

Representation impact: - Experienced environmental lawyers or a qualifying organisation's legal team: 35-45% favourable-outcome likelihood - General or less specialised representation: 25-35% - Self-representation: 5-15% - **A key advantage:** a **qualifying environmental organisation** (such as the Swedish Society for Nature Conservation) can **appeal permits in the environmental interest**, without showing individual harm, and runs cases with its own expertise — so a community need not carry the litigation alone. **A cost advantage:** each side generally bears its **own** costs (no full "loser pays" rule), and the **offentlighetsprincipen** gets the documents for free.

Success Rate (Legal Only): 20-30% **Success Rate (Legal + Opposition + Media):** 60-70%

Swedish legal strategy has three tracks, and two features make it powerful: the **reversed burden of proof** (the operator must prove the project is acceptable) and the decisive weight of **EU nature law**.

TRACK 1: PARTICIPATION AND THE PAPER TRAIL (the front door)

Most fights are shaped here, on the record, before any court.

- **Take part in the samråd (consultation).** Attend and **submit written views** early, raising **every real ground** — a significant Natura 2000 effect, a threat to the water supply, a defective assessment, harm to protected species or Sámi land. Concerns raised now shape the application and the EIA and build the record.
- **Use the offentlighetsprincipen.** Request the application, the **EIA**, and the file — Sweden's public-access principle lets **anyone** obtain official documents, quickly and for free. This is a world-leading, wide-open door.
- **Respond on the application.** When the county board or the court invites views on the application, put your evidence and grounds on the record there too.

Why this track matters: engaging the samråd well — specific, on time, grounded in the law and the evidence — plus the

offentlighetsprincipen paper trail, often does more than any amount of noise, and it builds the case you'll need for Tracks 2 and 3.

TRACK 2: EU NATURE LAW, THE EIA, AND THE CODE'S GENERAL RULES (the strongest cards)

Several grounds make this powerful.

1. A significant effect on a Natura 2000 site. A project that may significantly affect a **Natura 2000** site needs a separate permit and faces high, binding **EU-law** hurdles under the **Habitats Directive** — the strongest and sharpest ground, as at **Ojnare**. Documenting the effect and the failure of the required assessment is often the winning move.

2. A defective EIA. The **environmental impact assessment** must genuinely assess effects, alternatives, and mitigation; serious defects are strong grounds.

3. The Code's general rules — and the reversed burden. Chapter 2 of the **Environmental Code** puts the **burden on the operator** to show the project meets the precautionary principle, best available technology, a suitable location, and the other rules. Where the operator hasn't discharged that burden — for example, on groundwater or on cumulative effects — that is a powerful, distinctly Swedish ground.

4. Water and protected species. A worsening of a **water body's** status (the Water Framework Directive) or harm to a **protected species** adds further grounds.

TRACK 3: THE ENVIRONMENTAL COURTS, THE APPEAL RIGHT, AND INTERIM RELIEF

Match the tool to the goal: - **The Land and Environment Court (Mark- och miljödomstolen)** — decides major permits and hears appeals; it can **refuse** a permit or attach strict conditions. - **The Land and Environment Court of Appeal (Mark- och miljööverdomstolen)** — hears appeals (usually only after **leave to appeal** is granted) and can overturn a permit; then the **Supreme Court** (as at **Ojnare**). - **The environmental organisations' right to appeal.** A **qualifying environmental organisation** can appeal a permit **in the environmental interest, without showing individual harm** — filling the gap where the environment as a public good is affected. Connecting your case to such an organisation is often the single most important legal step. - **Interim relief (inhibition).** Where works are imminent, the court can **stay** a permit while an appeal runs — ask for it. - **The CJEU.** On an EU-law question (Habitats, Water Framework, EIA, Aarhus), a Swedish court can refer the question to the **Court of Justice of the EU**, whose rulings bind.

Be realistic about three things. First, a refused permit can be **re-applied for** with a better study — so an early win may need defending (though at **Ojnare** the protection ultimately held). Second, reaching the Court of Appeal usually needs **leave to appeal**, which isn't always granted — so make the first-instance case as strong as possible. Third, the political ground matters: **"green-transition" projects** (critical-minerals mines, big wind, heavy industry) have heavy national backing — so lead with the cleanest legal ground (**Natura 2000**, the **EIA**, the **general rules**), and keep opposition and media pressure alive.

Legal Strategy Decision Tree

```
START: Is a samråd running, an application filed, or a permit issued?
└ SAMRÅD/APPLICATION → Submit written views NOW – raise EVERY ground. Use the
  offentlighetsprincipen. Line up a qualifying organisation.
└ PERMIT ISSUED → Note the SHORT appeal deadline (about three weeks).
  Seek INTERIM RELIEF (inhibition) if works are imminent.

Q1: What is the defect?
└ Significant effect on a Natura 2000 site → HABITATS DIRECTIVE ground (strongest).
└ A water body worsened → WATER FRAMEWORK DIRECTIVE ground.
└ Operator hasn't met the Code's general rules → CHAPTER 2 (reversed burden) ground.
└ Defective EIA → challenge the permit's legality.
└ No real defect (lawful decision, you just disagree) → focus on opposition + media.

Q2: Who appeals?
└ A qualifying environmental organisation → appeals in the environmental interest
  (no individual harm needed) – often the best route.
└ Affected people (surrounding area) → their own appeal.

Q3: Are works imminent?
└ YES → ask for INTERIM RELIEF (inhibition) to stay the permit.

Q4: Cost?
└ Each side generally bears its OWN costs; the main cost is expert evidence.

RECOMMENDED PATHS
Path A – Clear Natura 2000/EIA defect: organisation appeal + interim relief + samråd
  record + document file + media. Highest ceiling.
Path B – Arguable but not clear-cut: build opposition + media; engage the samråd; appeal
  if a defect crystallises.
Path C – No legal defect: don't litigate. Win it politically, on the record, and in the press.
```

Litigation Success Factors

Litigation succeeds when **combined** with the other steps: - Litigation alone: 20-30% - Litigation + opposition: 35-45% - Litigation + opposition + media: 50-70% - A clear defect — a significant **Natura 2000** effect or a defective **EIA** — can exceed these (as at Ojnare), though a cured application may re-apply.

A court that sees a genuine legal defect, plus visible organised opposition, plus press coverage, treats the matter as serious.

What to Avoid: Legal Failures

- **Litigating instead of organising.** A lone technical point with no visible opposition reads as a niche dispute. Build opposition; litigate with it visible.
- **Missing the samråd.** The consultation shapes the whole case — engage it early and comprehensively.
- **Not lining up a qualifying organisation.** They hold the environmental-interest appeal right — bring one in early.
- **Not seeking interim relief.** Without it, the project may be finished before the appeal ends.
- **Weak grounds.** "This project is harmful" is an opinion, not a legal ground. "The quarry would significantly affect a Natura 2000 site, and the operator hasn't shown it meets the Code's precautionary rule" is a ground a court can act on.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when it is aimed at a specific legal ground. Here is how the records you gathered map onto the arguments that most often succeed in Sweden — so you file the right fact against the right rule.

A defective samråd (consultation) → grounds to overturn. Where consultation was inadequate or its results ignored. Feed it with: the samråd record and the decision's treatment of it.

An inadequate MKB → grounds to overturn. Ignored effects, no real alternatives, or a weak Natura 2000 or species assessment. Feed it with: the MKB gaps and your expert critique.

Organisation appeal standing → a strong route. Qualifying environmental organisations can appeal permits even without individual injury. Feed it with: the environmental-law breach, brought by the organisation.

Reindeer husbandry and Sámi rights not properly weighed → strong ground in the north. Feed it with: the affected sameby's position and the decision's failure to weigh it.

Conditions breached → supervision/enforcement. Feed it with: the conditions and dated evidence of breach, to the supervisory authority.

The pattern: match one clean, documented defect to one clear ground, and lead with the procedural ones — they can undo an approval without your having to win the argument about whether the project is "good." A qualifying environmental organisation can appeal in its own right — often the most effective route.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Time to complete: the full 12-month campaign **Cost:** ~SEK 400,000 (SEK) for trained spokespeople + ongoing support
Outcome: regular coverage reaching a large audience, political pressure on decision-makers

Success Rate (Media Only): 10-15% **Success Rate (Media + Opposition + Documentation + Legal):** 60-75%

Sweden has a strong national press, robust public-service broadcasters, active local papers, and very heavy internet use, that cover exactly these fights — and a record of that coverage shifting outcomes. The Ojnare fight became a national story, and that visibility raised the political cost and helped carry the protection of the area.

How Journalists Actually Work

What reporters care about, in order: (1) **news** (something new happened), (2) **consequence** (someone is affected), (3) **timeliness** (it's happening now), (4) **conflict** (a real dispute), (5) **new information**. What they don't care about: your opinion, how angry you are, vague statements, or meetings with no hook.

The Newsworthiness Formula

NEWS = DATA + CONSEQUENCE + TIMELINESS + NEW INFORMATION - **Bad:** "Residents oppose the project." (no data, no specific consequence, nothing new) → ignored. - **Good:** "Documents obtained under the offentlighetsprincipen show the EIA never modelled the risk to the lake that supplies the island's water; a qualifying environmental organisation has appealed; the court decides soon." → covered.

The difference is roughly a 4-5x change in the likelihood of coverage.

Know the Outlets That Cover This Beat

- **Local and regional media** — the audience that reaches your municipal and county officials.
- **National outlets** — *Dagens Nyheter* and *Svenska Dagbladet*, and the public-service broadcasters **SVT** and **Sveriges Radio** — for projects with wider significance.
- **Investigative and specialist reporting** — the public broadcasters' investigative teams, and environmental reporting — for deeper stories on permits, water, and Sámi rights.
- **Social media** — powerful in Sweden — plus international outlets for landmark cases (as at Ojnare).

Building Reporter Relationships (The Key)

Reporters don't ring campaigners for comment; campaigners ring reporters with tips. Identify 5-10 local, regional, and specialist reporters (environment, energy, Sámi-affairs beats). **Contact** them first: "I saw your piece on [similar story]. We've got a similar situation in [place] and I think your readers should know." Then keep the relationship warm over months — a relevant article, a document you obtained, a milestone — so that when the big story lands, they already know you.

Sample Media Timeline

- Month 1: build relationships (contact five reporters)
- Month 2: first story (the samråd turnout / the Natura 2000 finding)
- Month 3: press event releasing the survey/document findings; expert available
- Month 4: coalition announcement
- Month 5: demonstration coverage
- Month 6: court-date coverage

Real Media Dynamics (Swedish grounding)

- **Coverage plus mobilisation shifts outcomes:** the Ojnare fight combined a long campaign, a forest occupation, and expert documentation with sustained national coverage that raised the political cost and helped protect the area.
- **Document disclosures make stories:** a record obtained under the offentlighetsprincipen that contradicts the developer's claims — an EIA that ignored the groundwater risk — is a gift to a reporter and a court.
- **Independent evidence beats the developer's study:** independent ecological or hydrological analysis that contradicts an optimistic **EIA** lets the press write "experts dispute the developer's figures," and decision-makers take notice.

Media Measurement

Track cumulative stories and reach month over month. **Success indicators:** regular (at least monthly) coverage that carries your message and specific data, and visible decision-maker response. **Failure indicators:** no coverage for 2+ months, superficial coverage that drops your argument, or no response from decision-makers.

SECTION 8: EMAILS & LETTERS YOU CAN COPY

These are ready-to-use messages. Adapt the bracketed parts and send them. Keep them short, specific, and grounded in the law and the evidence — that is what gets read and acted on. The **samråd submission (8C)**, the **document request (8E)**, and the press release (8G) are among the highest-leverage messages here.

8A. Email to a reporter (story pitch)

```
Subject: Story tip: [specific finding] – [the court / county board] decides [date]

Hej [Reporter],

I follow your coverage of [beat / recent story]. We have something in [place]
your readers should know about, and there's a clear news hook.

In one line: [documents obtained under the offentlighetsprincipen / an independent
survey] show [quantified finding – e.g. "the EIA never modelled the risk to the lake
that supplies the town's water"], and [the court / the county board] decides on [date].

Why it's newsworthy: it's new (just obtained), specific (affects [# people / a
Natura 2000 site / the water supply]), and time-sensitive (decision [date]).

I can share the full report and the documents and connect you with [one named
expert] for an interview. Would a quick call this week work?

Vänliga hälsningar,
[Name] – [Organisation] – [phone] – [email]
```

8B. Letter to the county board, the municipality, or the court

```
Subject: [Refuse / attach strict conditions to] [project] – permit [ref]

To [the County Administrative Board / the Municipality / the Land and Environment
Court],

I am a resident of [place] writing about the [project], on which a decision (the
environmental permit) is expected around [date].

The concern, briefly: [one or two specific grounds – e.g. "the quarry would
significantly affect a Natura 2000 site and threaten the groundwater that supplies
the town, and the operator has not shown it meets the Environmental Code's
precautionary rule"].

I am asking you to [specific, achievable action – e.g. "refuse the permit," or
"require strict conditions and a redesign"].

[If true:] [#] residents raised these concerns at the samråd; [#] organisations,
including [environmental organisation], share the concern.

I would welcome a meeting and can share our full evidence.

Yours sincerely,
[Name], [address], [phone], [email]
```

8C. Samråd submission / written views — template

To: [the developer / the County Administrative Board / the Land and Environment Court]
Re: [project] – consultation (samråd) / views on the application

WRITTEN VIEWS on the [project].

1. Who I am: [name], [address], [how I am affected].
 2. Grounds (with evidence):
 - a. [Natura 2000] – the project may significantly affect the [named] Natura 2000 site; the Habitats Directive assessment is missing/inadequate.
 - b. [Water] – the project threatens [the groundwater / Lake X / the water supply]; it risks worsening the status of [water body] (Water Framework Directive).
 - c. [General rules] – the operator has not shown the project meets the Environmental Code's Chapter 2 rules (precautionary principle, best available technology, suitable location).
 - d. [EIA / species / Sámi] – the EIA omits [effect]; harm to [protected species] / to the reindeer-herding land of [sameby].
 3. I request that the permit be REFUSED; alternatively, [strict conditions and a redesign].
- [Name] – [signature] – [date] – Attachments: [baseline / impact / health report]

(NOTE: Raise every ground now – the samråd shapes the application and the whole case.)

8D. Coalition outreach email (to a qualifying environmental organisation)

Subject: [Project] – would [organisation] appeal, or support an appeal?

Hej [Name],

I'm [name] with [local association] in [place]. We're working on [project], which [one-line stake – e.g. "would significantly affect a Natura 2000 site and threaten the town's water"]. I'm getting in touch because your organisation holds the right to appeal permits in the environmental interest, which we may not.

We're not asking you to adopt our whole campaign – just to consider one concrete thing: [tailored ask – e.g. "appealing or supporting an appeal on the Natura 2000/EIA grounds," or "advising us on the strongest grounds and the samråd strategy"].

We have documented [habitat/water/species] evidence and organised community support, and can share a brief and arrange a call.

With thanks,
[Name] – [Local association] – [contact]

8E. Public-document request (the transparency tool)

To: [the County Administrative Board / the Land and Environment Court / the authority]

REQUEST FOR OFFICIAL DOCUMENTS (offentlighetsprincipen – the principle of public access to official documents)

Under the principle of public access, I request to see and receive copies of the following official documents concerning [project] (ref [ref]):

1. The permit application and the environmental impact assessment (EIA/MKB).
2. The samråd (consultation) record and the views submitted.
3. The expert reports and the authority's own assessment.
4. The draft/final permit decision and its conditions.
5. The correspondence between [the authority] and [the developer], [dates].

Under the principle of public access, official documents shall be provided promptly. If any document is withheld, please state the legal basis for the secrecy and note that the decision can be appealed.

[Name] – [address] – [date]

8F. Legal challenge — appeal / interim relief (a qualifying organisation can appeal)

NOTE: A QUALIFYING ENVIRONMENTAL ORGANISATION can appeal a permit in the environmental interest – no individual harm needed. Affected people can also appeal. The appeal DEADLINE is SHORT (about three weeks). Ask for INTERIM RELIEF (inhibition) to stay the permit if works are imminent. Reaching the Court of Appeal usually needs LEAVE TO APPEAL.

[APPEAL – form as advised by counsel]
[Date]

Appellant: [qualifying environmental organisation / affected person], [address].
Decision appealed: [permit [ref], dated [date]], granted by [the court / the delegation].

1. Grounds:
 - Ground 1 – significant effect on a NATURA 2000 site (Habitats Directive); the assessment is inadequate.
 - Ground 2 – the operator has NOT met the ENVIRONMENTAL CODE's general rules (Ch. 2 – reversed burden): [precaution / location / groundwater].
 - Ground 3 – a defective EIA / harm to [water body / protected species].
2. Relief: that the permit be REFUSED/overturned; and INTERIM RELIEF (inhibition) to stay it meanwhile.
3. [Where relevant] a request that the court refer [EU-law question] to the CJEU.

[Name / counsel] – [contact]

8G. Press release (effective)

FOR IMMEDIATE RELEASE

[HEADLINE: make it NEWS, not opinion]
[Subtitle: consequence + timeliness]

[DATELINE: Place / Date]

[LEAD – answer "why now?"]
[Local organisation] released [study / documents obtained under the offentlighetsprincipen / the samråd concerns] today showing [specific finding] affecting [# of people / a Natura 2000 site / the water supply].

KEY FINDINGS

- [Quantified effect with citation]
- [Quantified effect with citation]
- [Quantified effect with citation]

[DIRECT QUOTE – specific, from a credible voice, not a slogan]
"[What the finding means]," said [Name, Title].

[CONTEXT – why it matters; reference a documented case where relevant]

[DECISION POINT – create urgency]
[The court / the county board] decides on [date].

[CALL TO ACTION] To support or submit your views: [how].
For more: [contact].

CONTACT: [Name / Organisation / Phone / Email]
ATTACHMENTS: full report, obtained documents, maps, Q&A

8H. Legal strategy decision tree

See Step 4 for the full decision tree — Tracks 1-3, the samråd, the appeal right, the Natura 2000 and general-rules grounds, interim relief, leave to appeal, and the cost picture.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a year-long campaign. With an afternoon a week you can still do real damage to a bad project. In rough order of impact for the effort:

1. **Take part in the samråd and submit written views before the deadline. One page naming one or two concrete grounds (a species, water, reindeer husbandry). It enters the record any court will read.**
2. **Get the miljökonskvensbeskrivning (MKB) and quote its worst admission back to the authority.** The developer's own words carry the most weight.
3. **Send one accurate email to a local reporter** (Section 8A). A single story raises the political cost and can reach a lawyer or expert.
4. **File one public-document request** (Section 8E) — even if someone else uses it later.
5. **Point one environmental organisation at the fight.** Naturskyddsforeningen or another qualifying organisation may

take it from there — you hand off, you don't have to lead.

6. **Where Sámi land or reindeer husbandry is affected, make sure the sameby and Sametinget know the timeline** — those interests are a strong and distinct lever.
7. **Tell your neighbours the deadline.** Ten individual submissions beat your one.

Do only the first three and you've preserved the record, put the project in the press, and left a trail others can pick up.

SECTION 9: WHEN THE SYSTEM IS TILTED TOWARD APPROVAL (HONEST MECHANICS)

What this means. A system is **tilted toward approval** when the bodies that decide on a project lean, in practice, toward approving it — because the state and municipalities want investment and jobs (and, increasingly, the "green transition"), or because the applicant's own consultants prepare the environmental study. It rarely means anyone broke the law. Here is how the tilt works — and how communities win anyway.

Important Caveat

This section describes patterns from documented Swedish dynamics and public policy — green-transition pressure, applicant-funded studies, and the leave-to-appeal hurdle. It is not a statistical claim about "X% of all decisions." Read it as: "where these patterns appear, here is what happens and what it means for opposition."

What This Tilt DOES (and DOESN'T DO)

DOES: create financial and political incentive to approve (jobs, investment, and the strong national push for **critical-minerals mines, wind power, and heavy industry**); bias information (the **EIA** is commissioned by the applicant, and reads optimistically); advantage well-resourced developers; and, through the **leave-to-appeal** requirement, narrow the route to the higher court. **DOESN'T:** guarantee approval; make opposition impossible; remove the binding **EU-law** protections (Natura 2000, the Water Framework Directive); remove the **reversed burden of proof** on the operator; remove the **environmental organisations' right to appeal**; or prevent refusals, conditions, and delay.

Analogy: a tilted system is like playing on a pitch sloped against you. It makes winning harder, not impossible — so your strategy has to be sharper and more visible, your legal grounds cleaner (lead with **Natura 2000**), and your document paper trail solid.

Assessment Framework — Determine Your Situation

GREEN FLAG (low tilt): an ordinary permit with genuine scrutiny; no national-priority label; a clear legal defect; a Natura 2000 site, a water supply, or protected species engaged. → 65-75% with all 5 steps. Proceed with standard opposition.

YELLOW FLAG (moderate tilt): a green-transition push and an applicant-funded **EIA**, but independent evidence is possible and a legal ground (Natura 2000, EIA, general rules) is arguable. → 40-45% with all 5 steps; often win conditions and delay even if not a refusal. Proceed; prioritise the EU-law grounds.

RED FLAG (high tilt): a **national-priority** project (a critical-minerals mine, a big wind or industry project), applicant-only studies, heavy political backing. → 25-30% to stop; 50-60% to modify/delay. Decide whether delay/conditions justify the investment; lead with the cleanest EU-law ground; build power and a record for the next round. (Ojnare was a determined, well-backed project — and it fell.)

Direct Action and Safety: Factual Information (Descriptive, Not Prescriptive)

When permit and legal routes are exhausted, some Swedish communities have used non-violent direct action — demonstrations, occupations (the Ojnare forest occupation being the famous example), and blockades. This is descriptive of what has occurred, not guidance.

On safety, Sweden is, by international standards, a very safe place to organise — it ranks among the world's strongest on rule of law, rights, and low corruption, and serious violence against environmental campaigners is rare. The real constraints here are usually different: the **resource and time asymmetry** against a well-funded developer, the **technical complexity** of the permit process, and the **leave-to-appeal** hurdle to reach the higher court. Two honest notes. First, there has been recent public and legal debate about the **criminalisation of protest** (for example, climate blockades), so occupations and blockades can carry legal consequences — keep actions non-violent and be clear-eyed

about that. Second, for the **Sámi**, this work sits within a long history of marginalisation, and the consultation and rights framework — though strengthened — is still contested. Take the ordinary precautions: keep actions non-violent, notify the police of gatherings as required, don't act alone, and line up legal support in advance. Direct action has produced delay and attention in documented cases (Ojnare above all), but on its own rarely stops a project permanently; combined with documentation, the EU-law case, the appeal, and media, it is far more consequential.

Honest Assessment

Where the system is tilted, opposition using permit and legal methods has lower odds of an outright stop — but still reliably wins refusals or conditions, forces delay (often long), imposes political cost, builds durable community power, and creates a record for the courts. And Sweden offers genuine equalisers: binding **EU-law** protections that the authorities cannot simply override; the **reversed burden of proof** that puts the onus on the operator; the **environmental organisations' right to appeal** for the public good; **interim relief** that can stay a permit; and the world-leading **offentlighetsprincipen** that opens the file. Ojnare proves a determined project can be stopped. Neither scenario makes opposition futile.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with. But capture is real, and it looks different in each institution. Read your situation actor by actor — the type of capture changes which lever works, and sometimes tells you a lever is closed. Handle this carefully: the same facts that can sink a project can expose you to a defamation suit if you get them wrong.

The kommun council and committees. The most common pressure point: a municipality keen on jobs and tax base, or a councillor with a developer tie. Signs: a sudden reclassification or rezoning, a rushed vote, a report that ignores its own evidence. Lever: the conflict-of-interest (jäv) rules — a member who should have stepped aside but took part can taint the decision.

The länsstyrelsen and supervisory agencies. Capture here is usually softer — political direction to approve, or reliance on the developer's own consultants. Signs: an assessment that reads as the developer's document. Lever: an appeal to the Land and Environment Court.

The developers. Watch for land assembled quietly before a project is public, shell companies, and revolving-door hires of former officials or regulators. Bolagsverket, Lantmäteriet, and open public records surface the timeline a journalist needs.

The courts. Sweden has independent, specialist Land and Environment Courts and unusually strong transparency — a real advantage. The constraint is mainly time; seek to have a permit's immediate enforceability (verkställighet) withheld where work could start before the appeal is decided.

Ministers and politicians and priority projects. Where a project is a stated national priority, expect the whole chain to lean toward yes. That is not corruption, but capture of a kind; the honest path is procedural rigour plus public pressure.

How to act on it, safely. Document from public sources before you speak. Route serious allegations through lawyers and the proper bodies — the prosecutor for corruption, the parliamentary and JO ombudsmen for maladministration, and the National Audit Office for public money — not social media. A reckless public accusation can expose you to defamation liability and hand the developer a way to change the subject.

INTEGRATION: HOW ALL FIVE STEPS WORK TOGETHER

Realistic 12-Month Campaign Timeline

Months 1-2 — Foundation + Documentation: identify the target and decision-maker (Step 1); begin baseline surveys, especially Natura 2000 habitats, protected species, and water systems (Step 2); form an association and connect to a qualifying environmental organisation (Step 3); file first **document requests** and take part in the **samråd**, and make first reporter contacts (Steps 4-5). *Outcome:* structure forming, the record and paper trail beginning.

Months 2-3 — Public Launch: baseline complete; public meeting + strong **samråd** turnout and written views (Steps 3-

4); media event (Step 5). *Outcome*: opposition visible, concerns on the record, 3-5 stories.

Months 3-4 — Coalition + Impact Analysis: complete impact analysis testing the **EIA**, the **Natura 2000** effect, and the Code's general rules (Step 2); expand the coalition and secure a qualifying organisation to appeal (Step 3); prepare the appeal grounds (Step 4); data-release press event (Step 5). *Outcome*: broad coalition, legal grounds identified, coverage expanding.

Months 4-6 — Expansion + Health Data: health/water-security report (Step 2); sustained demonstrations (Step 3); the permit decision (Step 4); expert press events (Step 5). *Outcome*: possible refusal or strict conditions, quantified effects, regional media.

Months 6-9 — Escalation + Litigation: demonstrations escalating (Step 3); file the appeal and seek **interim relief (inhibition)** (Step 4); ongoing monthly media (Step 5). *Outcome*: sustained pressure, case live, permit possibly stayed.

Months 9-12 — Peak Pressure + Positioning: maintain opposition (Step 3); the Court of Appeal / positioning, and watch for a **re-application** after any refusal (Step 4); media momentum (Step 5). *Outcome*: permit + opposition + media + law compound; refusal, conditions, or the project shelved.

Key Principles (What Separates Winning Campaigns from Losing Ones)

1. **Specificity** — "the quarry would significantly affect a Natura 2000 site and threaten the lake that supplies the town's water," not "we oppose the project."
2. **Multi-tactic pressure** — samråd turnout + a qualifying organisation + opposition + media + appeal, together.
3. **Long-term organising** — sustain 12+ months; prevent burnout; Ojnare held for years and won.
4. **Documentation first** — build the evidence (especially Natura 2000 habitats, species, and water), then engage the samråd and appeal on it.
5. **Coalition building** — 5-10 diverse groups, and a **qualifying environmental organisation** to hold the appeal right; involve the affected **sameby** where relevant.
6. **Use EU nature law and the reversed burden** — binding Natura 2000 protection and the onus on the operator are the distinctively strong Swedish levers.
7. **Engage the samråd early, and seek interim relief** — the consultation shapes the whole case; a stay protects the site meanwhile.
8. **Realistic expectations** — expect conditions/modifications/delay; a refusal is the bonus; expect green-transition backing and possible re-application.
9. **Persistence** — plan for 12-24 months, keep momentum, and use the free, world-leading transparency to your advantage.

Warning Signs — Act Early

Watch for these and respond fast: attendance declining around months 4-5 (burnout); coalition members leaving or being co-opted with jobs or "compensation" offers; no media coverage for 2-3 months; the case stalling or a permit re-applied after a refusal; fundraising below half your target by month 6; a core organiser leaving without a successor; a qualifying organisation declining to appeal (find another, or reassess); or someone new pushing unlawful or reckless tactics. Each has a fix earlier in this guide — catch it early and the campaign holds.

FINAL ASSESSMENT: OUTCOMES & WHEN TO REASSESS

Real Outcomes: What Winning Looks Like

- **Permit refused / project shelved** (rarer): usually needs overwhelming opposition + a strong Natura 2000 or EIA case + heavy media + lower tilt. Ojnare (the quarry blocked and the area protected) shows a determined project can be stopped — and also shows a win can take a decade and must be defended.
- **Permit modified** (most common victory): strict conditions, real compensation measures, buffers, independent monitoring, redesign — often via the court or the county board.
- **Delay / attrition:** tied up for years while the case runs; costs mount and financiers lose confidence; the developer sometimes walks away.
- **Defeat:** the project proceeds (sometimes after a re-application with a better study). Focus then shifts to enforcing conditions, monitoring compliance, and the next opening.

Decision Point: Continue, Modify, or Reassess

Continue if the legal grounds are live (especially Natura 2000), a qualifying organisation is engaged, opposition is holding or growing, media is at least monthly, the coalition is stable, and momentum holds. **Modify** if attendance is falling, coverage has dropped for 2+ months, coalition members are leaving, the legal position has weakened, or you discover the project is being treated as a national priority. **Reassess** if, after ~12 months (and perhaps an appeal) permit and legal options are exhausted, the decision looks settled despite real effort, the community is exhausted, or resources are gone. Ask: has opposition already won partial victory (conditions, compensation, delay)? Would more effort win more, or just prolong the fight? Should energy shift to enforcing conditions, to the next project, or to the policy?

The Bottom Line

Opposition work can stop or significantly modify destructive projects in Sweden — even where investment, jobs, and the push for a green transition point toward approval. Opposition creates multiple, compounding forms of pressure: on the record, politically, in the press, and in the courts. Where the system is tilted, an outright stop is less likely, but opposition still delivers refusals, conditions, compensation, delay, and durable power.

And Sweden offers genuine equalisers: an integrated **Environmental Code** whose general rules put the **burden on the operator** to prove the project is acceptable; specialised **environmental courts** that decide the permit and can refuse or overturn it; binding **EU nature law** — **Natura 2000** and the Water Framework Directive — that the authorities cannot simply override; the **environmental organisations' right to appeal** for the public good; and the world's oldest right of public access to official documents, the **offentlighetsprincipen**, which opens the file to anyone. When a project truly cannot lawfully proceed, the courts can refuse or overturn it — as at **Ojnare**, where a determined quarry was stopped and a unique landscape protected. Such a win must then be defended — but it can be defended, and won.

Know your situation. Assess how tilted the system is honestly. Watch for genuine conflicts of interest and refer them to the prosecutors and audit bodies. Use the free, world-leading transparency to your advantage. Choose your strategy accordingly. Then organise — with eyes open to both the possibilities and the barriers.
